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December 18, 2017

Secretary
Federal Maritime Commission
800 N Capitol Street NW, Room 1046
Washington DC 20573
Email: secretary@fmc.gov

Re: Yakov Kobel and Victor Berkovich Complainants vs.
Hapag-Lloyd America, Inc. et al
FMC Docket No. 10-06

Dear Secretary:

Please find attached for filing a Motion to Dismiss Petition for Attorney Fees Only As To Respondent Limco Logistics, Inc. and the supporting Declaration and Certificate of Mailing and Email.

I am mailing via USPS the original and five copies to the Commission on this date.

If you have any questions please let me know.

Very truly yours,



Donald P. Roach

DPR/vjg

c: Jonathan S. Cooper, Esquire
International TLC, Inc.

FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., and INTERNATIONAL
TLC, INC.,

Respondents.

Docket No. 10-06

MOTION TO DISMISS PETITION
FOR ATTORNEY'S FEES ONLY AS
TO RESPONDENT LIMCO
LOGISTICS, INC.

Complainants move to dismiss Complainants' Petition for Attorney's fees only with respect to Limco Logistics, Inc., pursuant to the Commission's Order approving the Joint Request Approving Settlement Agreement and Stay of Attorney's Fees in this proceeding, entered on August 31, 2017.

This motion is based upon the Declaration of Complainants' attorney in support of this motion and filed herewith.

Dated this 18 day of December, 2017.



Donald P. Roach, OSB 75317
Attorney for Complainants

FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., and INTERNATIONAL
TLC, INC.,

Respondents.

Docket No. 10-06

DECLARATION IN SUPPORT OF
MOTION TO DISMISS PETITION
FOR ATTORNEY FEES ONLY AS TO
LIMCO LOGISTICS, INC.

I, Donald P. Roach, make this declaration based upon personal knowledge of the facts stated herein and make this declaration under penalty of perjury:

1. I hereby affirm that I am the attorney for Complainants in the above captioned case.

2. Complainants filed a petition for attorneys fees against Respondents International TLC, Inc. (ITLC) and Limco Logistics, Inc.

3. Complainants and Limco Logistics, Inc. moved for a joint approval of a settlement agreement between Complainants only as to Limco Logistics, Inc.

4. Limco Logistics, Inc. has fully complied with all of the terms and conditions set forth in the settlement agreement approved by the Commission on August 31, 2017.

5. Pursuant to the order approving the settlement agreement, Complainants hereby move to dismiss their petition for attorney's fees only as to Limco Logistics, Inc.

6. Complainants preserve their award for reparation and petition for attorney's fees as to respondent ITLC and do not in any way release or dismiss ITLC from Complainants' reparation award or petition for attorney's fees; except that any sums paid by Limco Logistics, Inc. pursuant to the settlement agreement will be a credit against the award of reparations or any attorney's fees as may be awarded against ITLC. ITLC has not complied with nor paid any of the reparations awarded to Complainants.

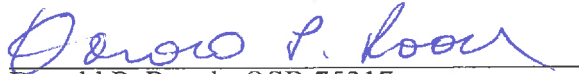
I make this declaration in support of Complainants' motion to dismiss only as to

1 Respondent, Limco Logistics, Inc.

2 I HEREBY DECLARE UNDER PENALTY OF PERJURY AND THE LAWS OF
3 THE UNITED STATES THAT THE FOREGOING IS TRUE AND CORRECT.

4 Dated this 18 day of December, 2017

5 Respectfully submitted:

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8 Donald P. Roach, OSB 75317

9 Attorney for Complainants

10 FAX: 503-228-8676

11 Email: donroachlaw@yahoo.com
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FEDERAL MARITIME COMMISSION

YAKOV KOBEL and VICTOR BERKOVICH,

Complainants,

v.

HAPAG-LLOYD AMERICA, INC., LIMCO
LOGISTICS, INC., INTERNATIONAL TLC,
INC.,

Respondents.

Docket No. 10-06

CERTIFICATE OF MAILING

I mailed true and correct copies of the foregoing MOTION TO DISMISS PETITION FOR ATTORNEY'S FEES AS TO LIMCO LOGISTICS and DECLARATION OF COMPLAINANTS' ATTORNEY IN SUPPORT OF THIS MOTION to the following addresses via email and first class mail as follows:

Limco Logistics, Inc. on December 18, 2017 and International TLC on December 18, 2017 at the following addresses:

International TLC
Alena Tokar
500 Valley Ave. NE
Puyallup WA 98372
Email: www.itlclogistics.com

Jonathan S. Cooper, Esquire
Blanck Cooper & Hernandez, P.A.
5730 S.W. 74th Street, Suite #700
Miami FL 33143
Email: jcooper@shiplawusa.com

Alexander Barvinenko
International TLC, Inc.
500 Valley Ave., NE
Puyallup WA 98372
info@itlclogistics.com

Dated this 18th day of December, 2017

Respectfully submitted:



Donald P. Roach, OSB 75317
Attorney for Complainants
FAX: 503-228-8676
Email: donroachlaw@yahoo.com